

APR 22 1996



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street S.W.
Washington, D.C. 20590

DOT-E 11189
(FOURTH REVISION)

EXPIRATION DATE: September 30, 1996

1. GRANTEE: Morton International, Inc., Ogden, Utah
(See Appendix A of this exemption)
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain air bag inflators and modules and seat-belt pretensioners and modules classed as Class 9. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 172.101, (insofar as the Table entry for airbag inflators or airbag modules) or 173.166 (insofar as classification of airbag inflators or airbag modules as Division 4.1).
5. BASIS. This exemption is based on Morton International's applications dated February 12, 1996 submitted in accordance with 49 CFR 107.105. (See Appendix A of this exemption)
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Air bag inflators <u>or</u> Air bag modules <u>or</u> Seat-belt Pre-tensioners <u>or</u> Seat-belt Modules	Class 9	UN 3268	III

Air bag inflators and modules approved under EX-9207102, EX-9304309, EX-9303190, EX-9303191, EX-9304308, EX-9306117, EX-9306117A and EX-9304310. Seat-belt pretensioners and modules approved under Ex-9401080. Other air bag inflators, air bag modules, seat-belt pretensioners and seat-belt modules must be examined and tested to meet Class 9 criteria as described in Paragraph 7.b. of this exemption, by either the Bureau of Explosives (BOE), Association of American Railroads or the Bureau of Mines (BOM), U.S. Department of the Interior in accordance with procedures prescribed in 49 CFR 173.56 and approved in writing by the Associate Administrator for Hazardous Materials Safety prior to the first shipment under the terms of this exemption.

NOT Active - Expired.

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7. PACKAGING AND SAFETY CONTROL MEASURES:

a. The following packagings are authorized:

1. Specification 4C1, 4C2, 4D, or 4F wooden boxes.

2. Specification 4G fiberboard boxes.

3. Non-specification reusable high-strength plastic or metal containers and non-reusable bottom-reinforced fiberboard containers are authorized for shipment only by highway and rail from a manufacturing facility to the assembly facility, subject to the following conditions:

(i) The gross weight of the package may not exceed 908 kg (2,000 pounds). The container structure must provide adequate support to allow packages to be stacked at least three high with no damage to the containers or devices.

(ii) If the devices (airbag inflators or airbag modules or seat-belt pretensioners or seat-belt modules) are not completely enclosed by inner packagings within the container, the container must be fully closed. The closure must be secured to the container by metallic banding or other comparable methods.

(iii) Internal dunnage must be sufficient to prevent movement of the devices within the container.

b. Air bag inflators and seat-belt pretensioners as packaged (including the use of specially designed holder or magazine) for transport must pass the external fire (bonfire) test identified as Test Method 6(c) in 49 CFR 173.58 with no explosion of the device, no fragmentation of device casings, and no ejection hazard or thermal effect which would significantly hinder firefighting or other emergency response efforts in the immediate vicinity. Air bag and seat-belt modules need not be subjected to the bonfire test if the inflators and seat-belt pretensioners have been tested satisfactorily.

c. When offered for transportation, the shipping paper must contain the EX numbers or product code for each approved inflator in association with the basic description required by 49 CFR 172.202(a). Product code must be traceable to the specific EX number assigned to the inflator by the Associate Administrator for Hazardous Materials Safety. A module must be identified by the EX number or product code of the approved inflator, or pretensioner.

- d. Packages offered for transportation by passenger aircraft are limited to 25 kg maximum net quantity per package. Packages offered for transportation by cargo aircraft are limited to 100 kg maximum net quantity per package.
- e. For transport by water, packages may be stowed "on deck" or "under deck" on a cargo vessel or passenger vessel.

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Modules and inflators identified in paragraph 3 above are exempt from the requirements of 49 CFR Parts 100-199 when installed in a motor vehicle or in completed vehicle components, such as steering columns or door panels.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger aircraft (See paragraph 7.d. above).

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. In accordance with the provisions of 49 CFR Part 107, Appendix B to Subpart B, paragraph 3, the shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

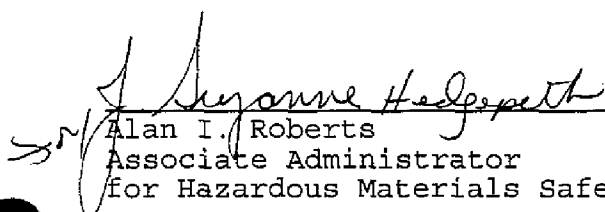
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving fire, explosion, or loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FAA, FHWA, FRA, USCG